

MEMORANDUM OF UNDERSTANDING
BETWEEN
THE GOVERNMENT OF THE UNITED STATES OF AMERICA AND
THE GOVERNMENT OF THE REPUBLIC OF COSTA RICA
CONCERNING ASSISTANCE FOR THE DEPORTATION OF SELECT
IRREGULAR MIGRANTS

The Government of the United States of America ("United States") and the Government of the Republic of Costa Rica ("Costa Rica"), each hereinafter referred to individually as a "Participant" or collectively as "Participants,"

RECOGNIZING that Costa Rica regulates its foreign relations in accordance with its international obligations and applicable domestic law, with the purpose of contributing to the maintenance of peace and freedom, respect for human rights, and the strengthening of democratic processes and international institutions;

CONSIDERING the application to Costa Rica of the 1951 Convention relating to the Status of Refugees (the "1951 Convention"), the 1967 Protocol relating to the Status of Refugees (the "1967 Protocol"), and the 1984 Convention against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment ("1984 Convention against Torture");

CONSIDERING that Costa Rica respects the rights under Article 12 of the International Covenant on Civil and Political Rights, and that it is therefore appropriate for Costa Rica to promote cooperation with states that uphold the same values outlined in Costa Rica's migration policy;

RECOGNIZING and respecting the applicable domestic laws and policies and international obligations applicable to each Participant;

NOTING the shared urgency of curbing mass and irregular migration for the public safety and security of each Participant;

CONSIDERING threats posed by certain individuals capitalizing on mass and irregular migration to Participants' public and national security, and the profits generated by human trafficking and smuggling for transnational organized criminal organizations; and

INTENDING to work cooperatively in a spirit of mutual respect and support;

Have reached the following understandings:

Section 1.

The United States, by and through the U.S. Department of Homeland Security (DHS), intends to cooperate consistent with this Memorandum of Understanding (hereinafter "MOU") as follows:

1. Collaborate with Costa Rica in fostering conversations with the governments of third countries identified by the Participants, to facilitate the deportation of their nationals from Costa Rica.
2. Provide Costa Rica with technical advice on best practices and logistical support, including air transportation, for the deportation procedures described in this MOU. As appropriate, provide Costa Rica with support for costs associated with escorts.
3. Provide support for Costa Rica with the appropriate, consistent, and necessary resources to enable or improve the facilities to manage the deportations of persons who do not have a legal basis to remain in Costa Rica in accordance with Costa Rican law. Funds provided by the United States under this MOU will not be used for construction.
4. Provide support for Costa Rica with equipment, transportation, and logistical support to manage the deportations of persons who do not have a legal basis to remain in Costa Rica and are subject to deportation in accordance with Costa Rican law.
5. When determined consistent with the provision of this MOU, provide assistance for deportation via air of people who lack a legal basis to remain in Costa Rica. Deportations may be accomplished via U.S.-chartered flights and/or U.S.-purchased commercial tickets.

Section 2.

Costa Rica affirms that it will act independently and under its sovereign authority in implementing its migration laws and practices, and that it will uphold its non-refoulement obligations under the 1951 Convention, its 1967 Protocol, and the 1984 Convention Against Torture in any deportation operations supported by U.S. assistance. Costa Rica additionally intends to cooperate consistent with this MOU as follows:

1. Remain solely responsible for migration- and law enforcement-related actions such as interdiction, access to protection, provision of proper and humane migrant temporary staging facilities, determination of inadmissibility, and arrangement of travel documents for cases requiring them.

2. Costa Rica reserves its right to deny entry to persons or categories of persons transferred from the United States, and to establish criteria or parameters of the persons it has the capacity to receive.
3. Follow the procedures outlined in the annex to this MOU related to procedures for deportations (Annex A) and any other such procedures the Participants may mutually decide.

With prior authorization and accompanied by Costa Rican authorities, facilitate timely access to files and facilities used in accordance with this MOU. The Participants understand that no foreign agent may enter Costa Rican facilities armed or carrying weapons of any kind.

Section 3.

1. The Participants affirm their intent not to publicize this MOU, until its effective date, except as required by law.
2. This MOU will become effective upon the date of the last note in an exchange of diplomatic notes indicating that the Participants have the capacity to fulfill their commitments under this MOU and under their respective national and international legal obligations. This MOU will remain effective for a period of 1 year, unless the Participants decide to extend that period, at which point the Participants are expected to confer regarding any additional changes needed to the MOU.
3. Either Participant may discontinue this MOU and written notice to the other Participant is expected. Each Participant intends to give the other at least 60 days' notice of its intent to discontinue the MOU. Notwithstanding the foregoing, either Participant may immediately suspend or discontinue assistance described in this MOU if it determines that it lacks the institutional capacity, resources or infrastructure to comply with its commitments under national and international law regarding migrants. In such an event, logistical assistance is expected to continue to be afforded as long as there are migrants in Costa Rican territory transferred under the terms of this MOU.
4. This MOU, including its Annex, may be modified in writing by the mutual decision of the Participants.
5. Nothing in this MOU is intended to affect an obligation of funds by either Participant, and all commitments in this MOU are subject to the availability of funds and to applicable laws and regulations.
6. Nothing in this MOU creates any right or obligation under international or domestic law.

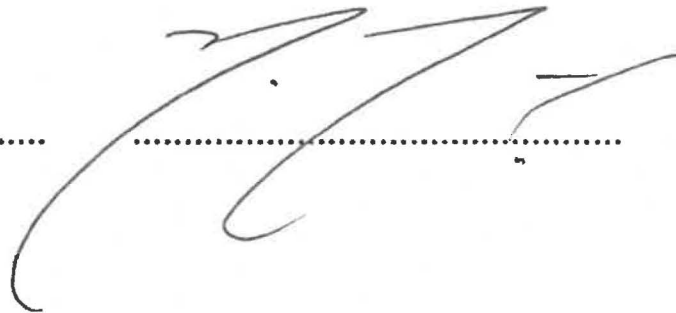
7. Annex A is an integral part of this MOU.

8. Any dispute regarding the interpretation or implementation of this MOU is expected to be resolved through consultation between the Participants. Situations that cannot be resolved through consultations will be resolved through diplomatic channels.

Signed at WASHINGTON on this 3rd day of April, 2025, in duplicate, in the English and Spanish languages, both texts being equally valid.

**FOR THE GOVERNMENT OF THE
UNITED STATES OF AMERICA:**

**FOR THE GOVERNMENT OF THE
REPUBLIC OF COSTA RICA:**



ANNEX A

Procedures for Deportation Assistance

Costa Rica and the United States intend to use the following procedures in connection with deportation activities consistent with this MOU, following completion of relevant training, technical assistance, and logistical preparations:

1. Costa Rican officials encounter, safely and securely house and transport, and determine whether to deport migrants, in accordance with Costa Rican law and Costa Rica's international obligations.
2. Costa Rica-designated point of contact notifies the DHS program manager.
3. When required by the receiving country, Costa Rica requests and receives documentation (e.g. travel documents) from the country to which the migrant will be deported and permission for deportation.
4. The Costa Rica point of contact requests air transportation from the DHS program manager and provides, at a minimum, the following necessary information:
 - a. Type of deportation (e.g., criminal, terrorism-related, illegal migrant),
 - b. Special support requirements (e.g., security escort, medical care),
 - c. Method of air transport (charter or commercial air ticket),
 - d. Date range for deportation,
 - e. Deportation point of contact for coordination,
 - f. Requested air point of departure for deportation, and
 - g. The flight manifest will state that Costa Rican law and non-refoulement obligations under international law have been upheld for each migrant identified for deportation, consistent with international law.
5. The DHS program manager receives and validates the movement requirement.
6. Costa Rica continues humane and secure housing of migrants with the logistical assistance established in this MOU.
7. DHS, in coordination with the DHS contract officer representatives, arranges for the scheduling of a charter or commercial ticketed aircraft based on the number of individuals and opportunities for the group to be deported.
8. The DHS program manager notifies the Costa Rica point of contact with the following information:
 - a. Ability to deliver on request (location, method, date/time, special coordination),
 - b. Special circumstances related to safety or security,
 - c. Communication with the charter aircraft to support coordination,
 - d. Flight planning, and
 - e. Other details as necessary
9. The DHS program manager and the Costa Rica point of contact continue to share information on support and coordination as required (delays, changes in requirements, etc.).